

Comments on the Sixth Report of the Inter-American Juridical Committee
on Binding and Non-Binding Agreements

I. *General Comment*

- There is value in the fact that the document defines itself as a set of points of understanding and voluntary practices that member states can draw upon to improve their knowledge in this area and reduce the risk of future difficulties, rather than seeking to be taken as an instrument that codifies or develops international law (pp. 1, 6). Contractual freedom remains a fundamental principle in relations between States. Although there are certain limits in terms of content (such as peremptory or *jus cogens* norms) and the universe of obligated subjects (due to the existence of certain *erga omnes* obligations), the freedom to conclude agreements with other States continues to govern relations between them as a general rule, including the freedom to determine the form that such agreements should have, as well as their legal effects.

II. *International Treaties*

- The definition of "treaty" in the Report (p. 6) is partly consistent with the definition contained in Article 2(1)(a) of the Vienna Convention on the Law of Treaties, which provides that a treaty is "an international agreement concluded between States in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments and whatever its particular designation".
- The independence of the binding legal nature of a treaty from its particular designation, whatever it may be, was also maintained by our country in its counter-memorial presented in the dispute "Peru v. Chile" before the International Court of Justice (2010). In that document, our country stated that the so-called "Santiago Declaration" signed in 1952 by Chile, Peru, and Ecuador had been an international treaty from the moment of its conclusion on August 18, 1952; it was subsequently registered at the United Nations in 1976, an act which recognized with retroactive effect the binding legal nature of the Declaration since its signing in 1952 (Counter-Memorial, Vol. I, p. 72, par. 2.63). The International Court of Justice itself confirmed in its judgment in that case that the Santiago Declaration was an international treaty, since none of the parties to the dispute objected to that status at the time the case was heard (ICJ, "Peru v. Chile," 2014, par. 48).
- Continuing with the problem of the particular name of a treaty, the report notes that so-called "memoranda of understanding" can also be international treaties. This view coincides with the decision of the Office of the Controller-General of the Republic of Chile (CGR), which has opined that, based on the terms used in an instrument and its content and having regard to the parties that sign it, a memorandum of understanding may qualify as an international treaty (CGR, Opinion No. 4.005 of January 20, 2012; CGR, Opinion No. 6,056 of November 3, 2010).
- As regards the criteria for identifying the type of agreement concluded, the report identifies the method of "proof of intent," which consists of a subjective analysis to determine whether the authors' intentions reflect the binding nature of the instrument in question (p. 8).

It should be noted that this method was also used by our country in its counter-memorial in the aforementioned case of "Peru v. Chile" before the International Court of Justice. In that document, our country stated: "What is decisive is whether the relevant States intended the instrument to be an agreement governed by international law" (Counter-Memorial, Vol. I, p. 74, par. 2.68).

- With regard to Table 2 (p. 10) containing indicative elements of language used in binding and non-binding agreements, to the clauses that are indicative of a treaty (e.g. consent to be bound, entry into force, depositary, amendment, termination, compulsory dispute settlement), it is suggested that the following clauses that likewise indicate the nature of the instrument as a treaty be added:
 - Authenticity of the languages in which the agreement is written.
 - Guarantees, bonds, or other securities offered between the parties ("*representations and warranties*").
 - Making entry into force conditional on the entry into force of another binding instrument.
 - Guidelines or parameters to interpret the terms of the text.
 - Use of the term "denunciation" or "termination" to refer to the cessation of the validity of the instrument.
 - The possibility of accessions to the instrument and the deposit of those accessions in the case of multilateral treaties.
- In relation to so-called "executive agreements" (p. 21), the Political Constitution of the Republic of Chile (CPR) also governs that possibility under the figure of so-called "agreements in simplified form" (Article 54.1, paragraph 4). Such agreements may be of two types: (a) agreements concluded by the president of the Republic to implement an international treaty in force and which do not deal with matters pertaining to law; or (b) agreements concluded by the president of the Republic in the exercise of his autonomous regulatory power, which, by definition, deals with matters outside the legal domain. In both types of agreement, no parliamentary debate is required for their approval. However, it should be specified that the legal nature of a treaty approved by the National Congress does not differ from those that do not require such approval; their legal value is the same.
- With regard to the capacity of State institutions to conclude international treaties, the report indicates that some States authorize particular categories of institutions to sign such instruments (p. 27). In the case of Chile, it is the Ministry of Foreign Affairs that is empowered to represent Chile vis-à-vis other States, organizations, and international forums (Law No. 21,080, Art. 1).

In addition, Chilean legislation provides for the possibility of other entities signing inter-institutional agreements (those whose nature is not that of an international treaty) at the domestic or international level, as indicated in section III of this document.

- In relation to section 4.1, regarding different domestic procedures for international treaties (p. 45), in the case of Chile the aforementioned agreements in simplified form do not require parliamentary approval. All other treaties are subject, as appropriate, to the

formalities of a law (CPR, Art. 54.1) and must therefore be debated by parliament. In some cases, there is mandatory preventive control of the constitutionality of the treaty by the Constitutional Court, when the treaty deals with matters of constitutional law (such as the organization of the law courts). In other types of treaties, prior verification of constitutionality by the Constitutional Court is optional; for example, if a group of parliamentarians or the president of the Republic so requests (CPR, Art. 93.1 and 93.3). Without prejudice to the above, all treaties, whether simplified or not, require the issuance of the corresponding supreme decree, which must be submitted to processing by the Comptroller-General of the Republic and then be published in the Official Gazette.

- Finally, with regard to point 5.1, concerning the legal effects of a treaty, some cases are noted where domestic law complements the *pacta sunt servanda* principle (pp. 54-55). In the case of Chile, the binding effects of certain treaties on human rights issues are set out in Article 5, second paragraph, of the CPR:

“The exercise of sovereignty recognizes as a limitation the respect for the essential rights emanating from human nature. It is the duty of the organs of the State to respect and promote those rights, which are guaranteed by this Constitution, as well as by the international treaties ratified by Chile and which are in force.”

III. *Inter-institutional Agreements:*

- Inter-institutional agreements are governed by Article 35 of Law No. 21.080, which amends various legal provisions in order to modernize the Ministry of Foreign Affairs of the Republic of Chile. Under that law, State administration bodies, within the scope of their competence, may sign inter-institutional agreements of an international nature with foreign or international entities.
- Under the same provision, such inter-institutional agreements have the following features:
 - They cannot encompass matters of law.
 - They cannot concern issues that are not compatible with Chile's foreign policy.
 - The respective body preparing to sign the agreement must previously advise the Ministry of Foreign Affairs, in order to ensure its consistency with Chile's foreign policy.
 - Inter-institutional agreements of an international character are not in the nature of treaties and do not generate any obligation under international law for the Republic of Chile.
 - The rights and obligations deriving from these agreements are assumed by the body that signs them, in accordance with the general rules and within its budgetary possibilities.

IV. *Political commitments*

- With regard to the effects of political commitments, the report indicates that States should be aware that a political commitment, even if not binding, could have legal effects, and they should point out different scenarios in which that could occur (p. 12). It should be noted that in all the scenarios mentioned (incorporation in other international legal acts,

incorporation in domestic legal acts, serving as a basis for the interpretation of binding instruments), an additional expression of will by the State will be required, whether expressed at the international level or at the domestic level, by which it expresses its desire to be legally bound in the terms indicated in the commitment. Cases in which a State may acquire obligations without having previously expressed its will are exceptional in international law, corresponding only to *erga omnes* obligations; i.e., the prohibitions of aggression, genocide, slavery and racial discrimination (ICJ, "Barcelona Traction," 1970, paras. 33-34). Therefore, the general rule is that political commitments, by their nature, cannot produce legal effects.

- With regard to point 2.4, on the capacity to make political commitments (p. 30), in the case of Chile the president of the Republic is the authority that, by constitutional mandate, has the exclusive power to conduct political relations with foreign powers and international organizations (CPR, Art. 32.15), being assisted therein by the Ministry of Foreign Affairs (Law No. 21.080, Art. 1).

V. *Registration of binding and non-binding agreements*

- Finally, with regard to section 4.6, on publicizing registries of binding and non-binding agreements (p. 52), it would be useful for the report to clarify whether the proposed national registry of political commitments should be publicly accessible, in which case the publicity of the register would have to conform to the domestic regulations of each State, which in the case of Chile is represented by Law No. 20.285 (Law on Access to Public Information).

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